

	2023-01358073	an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government.” <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review “to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiffs’ motion for approval of a \$420,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The parties should provide the estimated high and low individual PAGA payments. 2. The PAGA Period needs a firm end date to enable the court to evaluate the fairness and reasonableness of the settlement. Settlement Agreement ¶ I.11. 3. The word “Complaint” in paragraph I.12 should be replaced with “First Amended Complaint.” 4. The “Released Parties” provision in paragraph I.17 is overbroad as it includes unrelated, unidentified and/or ambiguous third parties, such as “affiliates” and “any and all of their agents, employees, officers, directors, and attorneys.” Those terms should be removed. 5. Paragraph III.2 should state which defendant will fund the settlement or state the funding allocation between defendants. 6. The court will not approve a settlement that permits defendants to shorten the PAGA Period. Paragraph III.3 should be revised accordingly. 7. The phrase “relate to or” in paragraph III.6 should be removed in two places as it renders the PAGA release overbroad. 8. Paragraph V.18 should be revised to state that the prevailing party attorneys’ fees and costs provision in that paragraph will not be enforced against unnamed aggrieved employees. 9. Plaintiffs’ counsel seeks \$140,000 in attorneys’ fees (33 1/3% of the gross settlement amount). Absent unique circumstances, the court is unlikely to approve attorneys’ fees in excess of 30% of the gross settlement amount. Plaintiffs’ counsel should address in the supplemental filing whether any such unique circumstances exist here. 10. The “Summary Report” submitted by Attorney Otkupman (Otkupman Decl. (ROA 167) Ex. 2) is insufficient as the
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		document does not state each task performed or the date(s) on which the work was performed. 11. Plaintiffs’ counsel must submit invoices substantiating the mediation and expert charges. Sung Decl. (ROA 169) Ex. 5; Otkupman Decl. (ROA 167) Ex. 3. 12. Plaintiffs each seek a \$5,000 enhancement award. Plaintiffs’ counsel states each plaintiff has entered into an individual \$15,000 settlement. Sung Decl. ¶ 19. The court is not inclined to award plaintiffs enhancement awards for this case. <u>As to the notice:</u> 13. The notice should be revised as necessary consistent with the above. 14. The acronym “PAGA” should be inserted before “Settlement” in the title of the document and before “settlement” in the first sentence of the notice letter. 15. The notice letter should (i) provide an explanation of PAGA; (ii) describe the factual allegations of the operative complaint; (iii) state the effective date of the release; (iv) identify the released parties; (v) state the gross settlement amount, net settlement amount, and the portions allocated to the LWDA and the aggrieved employees; (vi) explain how the individual payments will be calculated; (vii) describe the recipient’s responsibility for any taxes payable on the amount received; and (viii) notify the aggrieved employees that they cannot opt out of the settlement and that, even if they do not cash their checks, they will be bound by the release. 16. Will the settlement administrator maintain a website for this case? If so, the notice letter should provide the URL for case website maintained by the settlement administrator and identify the key case documents (including the order and judgment) that will be posted on the website, and should state that judgment will be posted on the settlement administrator’s website for at least 180 days. 17. The settlement agreement states the notice letter will be translated into Spanish. Settlement Agreement ¶ IV.3. If the notice letter will be translated into Spanish, a certified copy of the translation should be attached as an exhibit to the proposed order and judgment. <u>As to the proposed order and judgment (ROA 177):</u> 18. The proposed order and judgment should be revised consistent with the above. 19. The settlement agreement and any amendments thereto should be attached as exhibits to the proposed order and judgment (along with the notice letter in all languages).
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		Paragraph 1 of the proposed order and judgment should be revised accordingly. 20. The proposed order and judgment should state that the court finds the settlement to be fair, reasonable, and adequate and in the best interests of the aggrieved employees. 21. Subsections (a) through (e) on page 3 should be replaced with paragraph numbers. 22. The word "Complaint" in subsection (e) on page 3 should be replaced with "First Amended Complaint." 23. The proposed order and judgment should state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 24. Paragraph 13 should be revised to stated that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The court holds final accounting hearings on Thursdays at 9:00 a.m. (not 2:00 p.m.). The hearing on plaintiffs' motion for approval of PAGA settlement is continued to <u>January 14, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiffs are ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiffs must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
9	Fischer v. Kelly Services Global, LLC 2023-01304927	<u>ADR Review Hearing in Case No. 2023-01304927 (Fischer v. Kelly Services Global, LLC)</u> The court has reviewed the parties' joint ADR Review hearing statement filed August 13, 2026 (ROA 137). The request to continue the August 20, 2026 ADR Review hearing is denied. The ADR Review hearing scheduled for August 20, 2026 at 2:00 p.m. in Department CX105 remains on calendar.